



Procedure No: EXP202312853 (PS/00542/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 24/07/23, A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. with CIF: B76755842 (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

“On 07/02/23, I sent an email to the indicated email addresses to exercise my right to erasure of data to the company ECH EDUCATION, RIGHTS. On 08/02/23, the data protection officer sent me an email indicating that my data had been deleted from their databases. On 19/07/23, I received commercial information.”

Along with the complaint, the following documentation is attached:

- Dated 08/02/23, a copy of the email received from the address dpd@techtitute.com, containing the following information:

- o To: A.A.A.

- o Subject: “Right to Erasure” and the message:

- o Dear A.A.A., I apologize for any inconvenience and confirm that your data has been deleted from our database (...) That, in accordance with your request, we confirm that from the date of your request, any personal data relating to you has been excluded from processing by TECH EDUCATION. (...)."

- Dated 19/07/23, a copy of the email received from the address ***EMAIL.1 with the following content:

- o B.B.B. < ***EMAIL.1 >

- o TECH SCHOLARSHIP UP TO 65%- TECH TECHNOLOGICAL UNIVERSITY

- o To Undisclosed recipients:

- o Good morning, My name is B.B.B., I am writing from the scholarships and Enrollment department of TECH Technological University, some time ago you inquired about one of our programs. I would like to inform you that we have SCHOLARSHIPS available, exceptionally for today that can amount to a 65% discount for enrolling in a new training program (...)

SECOND: On 26/09/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notification and Electronic Address Service, was sent to the respondent on 07/07/23 via the electronic notification service, “NOTIFIC@”, being accepted by the respondent on 28/09/23.

No response has been received to this forwarding.

THIRD: On 24/10/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 15/12/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 21.1 of the LSSI, classified as “minor” in Article 38.4.d).

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what may result from the instruction, would amount to a total of 5,000 euros (five thousand euros).

This initiation agreement, which was carried out in accordance with the rules established in the LPACAP, according to the certificate from the Electronic Notification and Electronic Address Service, was sent to the respondent on 15/12/23 via the electronic notification service, "NOTIFIC@", being accepted by the respondent on 19/12/23, as recorded in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP -provision of which the respondent was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the

3/7

attribution, the infringement of the LSSI attributed to the respondent and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

Unique: According to the complainant, on 07/02/23, he sent an email to assert his right to erasure of the data to the company ECH EDUCATION, RIGHTS, receiving the acknowledgment of receipt on 08/02/23. However, on 19/07/23, he received a new advertising email from the entity.

To corroborate the claims made in the complaint, the following documentation is provided:

- Dated 08/02/23, a copy of the email received from the address dpd@techtitute.com, containing the following information:

- o To: A.A.A.

- o Subject: "Right to Erasure" and the message:

- o Dear A.A.A., I apologize for any inconvenience and confirm that your data has been removed from our database (...) That, in accordance with your request, we confirm that from the date of your request, any personal data relating to you has been excluded from processing by TECH EDUCATION. (...)"

At the bottom of the email, the following information is present:

Data Protection Officer

dpd@techtitute.com

The largest digital university in the world

www.techtitute.com

- Dated 19/07/23, a copy of the email received from the address ***EMAIL.1 with the following content:

- o B.B.B. < ***EMAIL.1 >

- o TECH SCHOLARSHIP UP TO 65% - TECH TECHNOLOGICAL UNIVERSITY

- o To Undisclosed recipients:

- o Good morning, My name is B.B.B., I am writing from the scholarships and Enrollment department of TECH Technological University, some time ago you inquired about one of our programs. I would like to inform you that we have SCHOLARSHIPS available, exceptionally for today that can amount to a 65% discount for enrolling in new training (...).

At the bottom of the email, the following information is present:

B.B.B.

Scholarships Department

***EMAIL.1

The largest digital university in the world

www.techtitute.com

LEGAL GROUNDS

I.

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the events that occurred:

In the complaint submitted by the complainant, it is stated that on 07/02/23, he sent an email to the respondent requesting his right to erasure of the data held by the company, and one day later, on 08/02/23, the data protection officer sent him an email with the acknowledgment of receipt and confirmation that his data had been deleted from their systems. However, on 19/07/23, he received a new advertising email from the respondent.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly

5/7

or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Information Society Service" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Information Society Service" also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider."

According to section d) of the aforementioned Annex, the recipient is the "natural or legal person who uses, whether or not for professional reasons, an information society service."

IV

Classification of the possible infringement committed by sending commercial communications without the prior consent of the affected party

The fact that the respondent sends an advertising email to the claimant without their express consent constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and

in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

V

Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, it is considered appropriate to adjust the sanction to be imposed according to the following aggravating criteria, established in Article 40 of the LSSI:

- The existence of intentionality (section a), since the claimant had requested that no further commercial communications be sent to them via email and the respondent had acknowledged receipt of their request confirming that it had been addressed, even confirming it before this Agency, and despite this, subsequently sent them a new advertising email.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €5,000 (five thousand euros) for the infringement of Article 21.1 of the LSSI.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, RESOLVES:

FIRST: TO IMPOSE on the entity TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. with CIF: B76755842, for infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, a fine of €5,000 (five thousand euros).

SECOND: TO NOTIFY this resolution to TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es